

proper only when there is ‘a “genuine likelihood” that the attorney’s status or misconduct “will affect the outcome of the proceedings before the court”’[.]’)

“When a party moves to disqualify opposing counsel based on allegedly improper receipt of privileged or confidential information, the party seeking disqualification has the initial burden to show its adversary possesses confidential information materially related to the proceedings before the court. [Citation]” (*Sundholm v. Hollywood Foreign Press Association* (2024) 99 Cal.App.5th 1330, 1341.)

Analysis

Defendants’ motion is predicated on their contention that email searches conducted by counsel for Plaintiffs in 2022 while representing Albert D. Seeno III were both “secret” and “unauthorized,” and that proposed use of those discovery materials in the instant case, where counsel also represents David T. Seeno, is “an unprecedented violation of ethical and legal canons and an affront to the judicial system.” (Mot. at 10:5-6.)

At the outset, the Court is skeptical that the collection of documents described by Defendants was itself a discovery violation. At the time of the document collection whether Albert D. Seeno III was active CEO of several Seeno entities or whether he had been terminated under his employment agreement was subject to dispute. Consequently, the Court cannot conclude that the electronic discovery collections to which Defendants’ object was beyond Albert D. Seeno III’s custody and control as CEO. Even assuming *arguendo* that the breadth of this document collection was somehow misconduct, the Court is not aware of any authority that supports disqualification of counsel for improper electronic searches alone (without some evidence of specific privileged documents having been retrieved through those searches).

Here, Defendants point to just one document—a spreadsheet relating to a 2013 Restructuring Agreement collected from Kevin McCauley’s email. (See Mot. at § I(B) and Gallagher Decl. ¶ 3, Ex. 2.) The Court understands that this document was the subject of correspondence between counsel for the parties in March of 2025 and that each hold a different position regarding the privilege of that document. (See Yu Decl. ¶ 34 and Ex. O.) That said, the Court understands that counsel for Plaintiffs sequestered the document in order that counsel for Defendants could pursue a privilege claim with the Discovery Referee. Counsel for Defendants did not do so.

Critically absent from Defendants’ motion is evidence that there is any privileged material that is likely to be prejudicial in this litigation—whether the broader consolidated action altogether, or this specific case which involves the alleged conversion of personal property at a family-owned Ranch. In the absence of such a material link, the Court cannot conclude that disqualification is warranted. Fundamentally this is a discovery dispute and there are other mechanisms available to Defendants to resolve their issues with document collection and production. The extraordinary step of disqualifying counsel for Plaintiffs is unwarranted on these facts. The motion is **denied**.

**8. 9:00 AM CASE NUMBER: C24-02339
CASE NAME: JUDY WOBLESKI VS. CITY OF WALNUT CREEK
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT. FILED BY CITY OF WALNUT CREEK.**

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant City of Walnut Creek (“Defendant” or “Walnut Creek”)’s Demurrer. The Demurrer relates to Plaintiff Judy Wobleski, Roger Stone, Mary Jo Painter, Karen Stiles, Shivakumar Sundaram, Aarthi Shivakumar, and Julie Welsh (collectively, “Plaintiffs”)’s amended complaint for abatement of a public nuisance and injunctive relief. The Complaint alleges causes of action for (1) public nuisance, (2) injunctive relief to abate nuisance, and (3) declaratory relief.

Defendant demurs to Plaintiffs’ compliant pursuant to Code of Civil Procedure (“CCP”) § 430.10(a) and (e) on the grounds that the Court lacks jurisdiction to grant Plaintiffs’ requested relief, and the grounds that Plaintiffs’ nuisance claim is barred by Civil Code § 3482.

For the following reasons, Defendant’s demurrer is **overruled**.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Brief Factual and Procedural Background

This action relates to the conversion of two tennis courts to eight pickleball courts. (FAC at ¶ 1.) Plaintiffs allege that the noise from the Rudgear/Dapplegray courts is as high as 88 dBA. (*Id.* at ¶ 4.) They further allege that the noise levels are well above legally permissible levels and constitute a nuisance. (*Id.* at ¶ 6.) Plaintiffs allege that this violates the City of Walnut Creek’s Noise Element of its General Plan as well as the Noise Ordinance in its Municipal Code. (*Id.* at ¶¶ 19, 20.)

This Court sustained Defendant’s prior demurrer to the original complaint on the grounds that Plaintiffs’ requested relief would require the Court to exercise the core functions of the legislative branch (specifically, to tell the City of Walnut Creek which sports are permissible in its parks). The Court also found that the challenged decision to convert the Dapplegray tennis courts to pickleball courts was entitled to statutory immunity for the public nuisance under Civil Code § 3482.

Analysis

A “nuisance” is defined as “[a]nything which is injurious to health ... or is indecent or offensive to the senses, ... so as to interfere with the comfortable enjoyment of life or property.” (§ 3479.) A nuisance is a “public nuisance” if it “affects at the same time an entire community or neighborhood.” (§ 3480; see *Friends of H Street v. City of Sacramento* (1993) 20 Cal.App.4th 152, 160 (*Friends of H Street*).) Because “each individual in a community must put up with a certain amount of annoyance, inconvenience and interference ... a public nuisance is actionable only if the requisite interference is “both substantial and unreasonable.” (*People ex rel. Gallo v. Acuna* (1997) 14 Cal.4th 1090, 1105 italics

and internal quotations omitted; see also *Hacala v. Bird Rides, Inc.* (2023) 90 Cal.App.5th 292, 324.)

Jurisdiction

Defendant once again argues as a threshold issue that the Court lacks jurisdiction under the “separation of powers” doctrine. (Demurrer at § V(A).) Previously, this Court concluded that the relief requested by Plaintiffs in their original complaint would require the Court to exercise the core functions of the legislative branch and to have power in an area where the Court has no special knowledge or expertise. Specifically, the original complaint sought an order precluding pickleball from with Dapplegray courts.

In their Amended Complaint, Plaintiffs have revised their prayer to seek an order “prohibiting Defendant from regulating its parks in such a manner as to violate the law and create a nuisance.” (Prayer at ¶ 6.) Defendant argues that this general characterization of relief still offends the separation of powers doctrine, arguing that “[a] generic order to prohibit noise at a park would require this Court to close its eyes to the activity at the center of the lawsuit and cannot otherwise issue.” (Demurrer at 12:5-7 [citing Civil Code § 3532].) Defendant further argues that “[a] court order addressing a nuisance that allegedly arises from pickleball play necessarily calls upon this Court to impermissibly assume the role of the City Council or city department head to administer its parks in a particular manner after weighing policy alternatives and mediating neighborhood disputes to effectuate and monitor such relief.” (*Id.* at 12:10-14 [citing *Citizens for Odor Nuisance Abatement v. City of San Diego* (2017) 8 Cal.App.5th 350, 364].)

Defendant’s reliance on *Citizens for Odor Nuisance Abatement* is inapt. That case was decided on summary judgment and concerned the causation element of a public nuisance cause of action. It does not compel the conclusion that the Plaintiffs’ current prayer for relief would require the Court to compel the Defendant City to use its discretion in a particular manner and therefore preclude the Amended Complaint as a whole under the separation of powers doctrine.

The Court cannot conclude that Plaintiffs’ amended complaint violates the separation of powers doctrine as a matter of law. The Demurrer on this ground is **overruled**.

Section 3482 Immunity

Plaintiffs’ revision of their prayer for relief and amendments to their complaint necessarily affects the Defendant’s section 3482 immunity argument. Rather than challenge the decision to convert the Dapplegray courts to pickleball courts, the Plaintiffs now challenge “continuing activities that have created a nuisance in violation of state and local ordinance provisions.” (FAC at ¶ 33.) Plaintiffs argue that it is a disputed question of fact “whether the City, in regulating its parks, created a nuisance and whether a nuisance inevitably will result from such regulation” that cannot be resolved on demurrer. (Opp. at 9:8-11.) Rather than challenge the decision to convert the Dapplegray courts, now Plaintiffs argue that they have challenged the manner in which the City operates the park—which they contend precludes immunity under section 3482.

The Court is inclined to agree. Furthermore, the Court is disinclined to conclude that this revision is a “sham pleading” as contended by Defendant—rather, the revised allegations are responsive to the Court’s prior order and conclusions. The Court cannot conclude as a matter of law that the public nuisance now alleged in this case flows from a statutorily authorized act. Ultimately, whether Plaintiffs will be able to demonstrate the causation element of their public nuisance cause of action with respect to Defendant cannot be resolved on Demurrer.

The Demurrer on this ground is **overruled**.

9. 9:00 AM CASE NUMBER: C24-02551
CASE NAME: ODK CAPITAL, LLC VS. THAI PHAM
*HEARING ON MOTION IN RE: RECONSIDERATION OF ORDER DENYING MOTION TO SET ASIDE
DEFAULT
FILED BY:
TENTATIVE RULING:

Appearance required.

10. 9:00 AM CASE NUMBER: C24-02592
CASE NAME: ROWENA DAVIS VS. THE STONEBROOK CONVALESCENT CENTER, INC
*HEARING ON MOTION IN RE: AN ORDER GRANTING HER AUTHORITY TO MAINTAIN THE
SURVIVAL CAUSES OF ACTION ON BEHALF OF ROWENA DAVIS, AN INTERESTED PERSON
FILED BY: WEST , NAMONDA
TENTATIVE RULING:

The motion is denied without prejudice for failure to file a proof of service.

11. 9:00 AM CASE NUMBER: C25-01068
CASE NAME: CHRISTOPHER LONDAHL VS. DOES 1-10
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT OF ATTACH ORDER
FILED BY: CHRISTOPHER LONDAHL
TENTATIVE RULING:

The hearing is continued to December 22, 2025 at 9:00 a.m. in Department 9.

12. 9:00 AM CASE NUMBER: C25-01091
CASE NAME: TARA HOLMES LEONARD VS. DONOR NETWORK WEST
*HEARING ON MOTION IN RE: ERRATA AND RENEWED CONTRACT
FILED BY:
TENTATIVE RULING:

Defendant Donor Network West brings this motion to compel arbitration and to stay this action during the pendency of arbitration. The Motion is opposed by Plaintiff Tara Holmes Leonard.